

25VECV01272 25VECV01272

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-06

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Case Number: 25VECV01272 Hearing Date: July 6, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

UPGRADE INC.,

Plaintiff,

vs.

ANTWAN SMALLS, and DOES 1 through 5, inclusive.

Defendant.

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CASE NO.: 25VECV01272

ORDER GRANTING CROSS-DEFENDANT'S MOTION FOR

TO DEEM REQUESTS FOR ADMISSION ADMITTED

ANTWAN SMALLS,

Cross-Complainant,

vs.

UPGRADE INC.

Cross-Defendant.

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I. BACKGROUND

This action arises out of a loan on which Plaintiff Upgrade Inc. ("Upgrade") alleged Defendant and Cross-Complainant Antwan Smalls ("Smalls") defaulted, resulting in him owing the principal sum of \$64,301.66.

In the Cross- Complaint, Smalls alleged Upgrade provided a home improvement loan to Smalls based on fraudulent representations, resulting in substandard work. The Court recently sustained Upgrade's demurrer to all causes of action with leave to amend.

Upgrade now seeks an order to deem the truth of the matters admitted in Upgrade's requests for admissions ("RFAs") to Smalls.

II. PROCEDURAL HISTORY

On March 6, 2025, Upgrade filed the Complaint alleging (1) Breach of Written Contract.

On April 4, 2025, Smalls filed an Answer and Cross-Complaint.

On August 4, 2025, the Court sustained Upgrade's Demurrer in its entirety with leave to amend and denied Upgrade's Motion to Strike.

On August 8, 2025, Smalls filed a First Amended Cross-Complaint ("FAXC") alleging: (1) Fraud; (2) Negligence; (3) Violation of Business and Professions Code § 17200; (4) Predatory Lending; and (5) Breach of Implied Covenant.

On November 18, 2025, the Court granted Upgrade's Motion to Quash Service.

On January 20, 2026, the Court denied Upgrade's Motion to Dismiss Smalls's Cross-Complaint.

On June 8, 2026, Upgrade filed the instant Motion to Deem RFA's Admitted.

On June 22, 2026, the Court sustains Upgrade's Demurrer to the Cross-Complaint with leave to file a second amended cross-complaint on or before July 6, 2026.

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I. LEGAL STANDARD

A. Requests for Admission

As a general matter, “[a] summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.” (Code Civ. Proc. § 415.10) Personal service conducted “in this manner is deemed complete at the time of such delivery.” *Id.* Additionally, “[a] summons may be served on a person outside this state in any manner...” per Article 3 of the California Code of Civil Procedure. (Code Civ. Proc. § 415.40.)

“Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc. § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared...” (Code Civ. Proc. § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

II. ANALYSIS

On April 17, 2026, Plaintiff served RFAs on Smalls (See Declaration of Laura D’Anna, ¶ 1). Smalls’s responses to Plaintiff’s RFAs were due on May 27, 2026; however, Upgrade has not received responses from Smalls to this day.

Plaintiff properly served Smalls with the Complaint and Summons by substitute service, and Smalls thereafter answered Upgrade’s Complaint, Upgrade subsequently served Smalls with the RFAs at the same address. The Court finds Upgrade is entitled to an order deeming the matters specified in Upgrade’s RFAs admitted because there is no evidence that Smalls served responses to the RFAs by the time the Court called the instant motion for hearing.

Accordingly, the Court GRANTS Plaintiff’s Motion RFAs.

III. SANCTIONS

The Court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel . . . responses to interrogatories or production demands, absent substantial justification or other circumstances that make imposing the sanctions unjust. (Code Civ. Proc. § 2030.290(c).) The court shall also impose a “monetary sanction...on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc. § 2033.280(c).) Similarly, “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030(a).) Misuse of the discovery process includes “[f]ailing to respond or to submit to an authorized method of discovery,” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc. § 2023.010(d), (g).)

Plaintiff is seeking \$810.00 in monetary sanctions for their Motion RFAs, which accounts for 1 hour of work drafting the Motion RFA, and 2 hours for preparing an opposition and attending the motion hearing at a billing rate of \$250.00, plus a \$60.00 filing fee. (See Laura D'Anna RFAs Decl., ¶ 5.)

The Court finds Upgrade's counsel's hourly rate of \$250 is reasonable, given the prevailing rates in the Greater Los Angeles Area for attorneys with comparable experience. The Court further determines that allocating one hour for drafting the Motion RFA is reasonable. However, the Court finds that two hours for preparation for the hearing and attendance at the hearing set on July 6, 2025, is not reasonable, given that Smalls has not filed an opposition to Upgrade's Motion. Thus, the time allocated to preparation and appearance shall be reduced to half an hour.

As such, the Court awards Plaintiff's counsel discovery sanctions of \$435.00 against Smalls. This amount reflects Plaintiff's counsel's reasonable expenses, i.e., attorney's fees and filing fees, associated with the cost of the motion.

Smalls shall pay Plaintiff's counsel monetary sanctions in the amount of \$435.00 on or before August 31, 2026.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motion to Deem Requests for Admissions Admitted as to Smalls.

The Court also GRANTS Upgrade's request for discovery sanctions in the amount of \$435.00. Smalls shall pay Upgrade's counsel monetary sanctions in the amount of \$435.00 on or before August 31, 2026.

IT IS SO ORDERED.

DATED: July 6, 2026

Hon. Michael R. Amerian

Judge, Superior Court